

Hanuman Prasad v. State of U.P.

Allahabad High Court · Division Bench · 26 November 2019 · Writ-C No. 38437 of 2019 · **Writ disposed; EE to pass speaking order; s.127 preserved; recovery stayed.**

HEADNOTE

On a challenge to a Tehsildar recovery citation alleging want of hearing and non-compliance with the U.P. Electricity Supply Code, 2005, the Division Bench disposed of the writ without examining the demand on merits, directing the consumer to appear before the Executive Engineer with objections, requiring a speaking and reasoned final order, staying coercive recovery for a limited period, and preserving an appeal under Section 127 of the Electricity Act, 2003 against that final order.

FACTUAL SUMMARY

Hanuman Prasad filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery citation dated 30 September 2019 issued by the Tehsildar, Tehsil Harraiya, District Basti. He contended that the respondents were taking coercive action against him without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the Electricity Department were heard. The Court did not record findings on whether the citation or the underlying demand was lawful.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking final order then Section 127 appeal

HOLDING

A writ challenging a Tehsildar recovery citation on the ground of want of hearing and non-compliance with the U.P. Electricity Supply Code, 2005 may be disposed of by directing the consumer to appear before the Executive Engineer with objections and evidence, requiring a speaking and reasoned final order within a fixed time, staying coercive recovery for a limited period subject to appearance, and leaving any further grievance against that final order to an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION OR THE UNDERLYING DEMAND COMPLIED WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court did not examine the petitioner's allegation of want of hearing or Code non-compliance on merits. ¶ 1